

Here, defendant Ford proffers evidence that the Vehicle was presented once for a noise when closing the door and contends this does not render the Vehicle unfit for its ordinary purpose, as a matter of law.⁴ Plaintiff does not proffer any evidence in opposition which would create a triable issue of material fact.

E. FIFTH CAUSE OF ACTION

Plaintiff's fifth cause of action alleges negligent repair. Defendant Ford proffers evidence that the Vehicle was presented once for a noise when closing the door and repair of this issue was made with the subject Vehicle being in for service no more than 15 days.⁵ Plaintiff does not proffer any evidence in opposition which would create a triable issue of material fact.

F. SIXTH CAUSE OF ACTION

Plaintiff's sixth cause of action alleges fraudulent concealment of the Transmission Defect. Defendant Ford proffers evidence that Plaintiff did not present the Vehicle for a single transmission complaint or repairs.⁶ In the absence of a transmission defect, defendant Ford contends there can be no fraudulent concealment of such a defect. Plaintiff does not proffer any evidence in opposition which would create a triable issue of material fact.

As discussed above, the court finds defendant Ford has met its initial burden of showing that the causes of action asserted in Plaintiff's complaint have no merit. Having filed no opposition, Plaintiff has failed to show that a triable issue of one or more material facts exists.

IV. CONCLUSION

Based on the foregoing, Defendant Ford's motion for summary judgment as to Cause of Actions 1 through 6 is GRANTED. The Court will prepare the formal Order.

Calendar Lines # 5

Case Name Fuheng, Inc. et al vs Zihan Liu

Case No. 24CV441593

Motion for Attorney's Fees and Sanctions

Before the court is Plaintiffs Fuheng, Inc.'s Motion for Attorney's Fees and Sanctions against Defendant Zihan Liu. Pursuant to California Rule of Court 3.1308, the court issues its tentative ruling as follows.

I. BACKGROUND

On November 13, 2025, Plaintiffs Fuheng, Inc. filed a Motion for Attorney's Fees and Sanctions against Defendant Zihan Liu. Subsequently, on December 26, 2025, the plaintiff filed a proof of service of motion indicating U.S. Mail service to the defendant on November 13, 2025. Plaintiffs seeks a total of \$13,387.50 based on \$8,925.00 in attorney's fees and \$4,462.50 based on a 1.5 multiplier of the lodestar.

Defendant Liu filed opposition papers on May 26, 2026, and provided proof of service indicating U.S. mail service on that same day. Per Code of Civil Procedure section 1005(b), opposition papers were due on May 21, 2026.

Plaintiff filed a supplemental declaration by Andy Yang on May 19, 2026 and a reply brief with attached Exhibits A-B on May 26, 2026 that was accompanied by a proof of service on that same day by way of U.S. mail service.

⁴ See Ford UMF, Fact Nos. 6, 7, and 10.

⁵ See Ford UMF, Fact Nos. 6 and 10.

⁶ See Ford UMF, Fact Nos. 6, 8, and 9.

The Court has carefully reviewed: Plaintiff's notice of motion and memorandum of points and authorities (totaling 5 pages); Declaration of Andy Yang in support of the motion (totaling 3 pages); Supplemental Declaration of Andy Yang in support of Plaintiff's motion (totaling 11 pages); Defendant Zihan Liu's Opposition (totaling 4 pages); Plaintiff's Replay Brief and attached Exhibits A-B (totaling 13 pages); the proofs of services; and the pleadings.

II. LEGAL STANDARD

A. PROCEDURAL VIOLATION

The Court notes procedural violation by the defendant. Defendant Liu filed opposition papers on May 26, 2026 with a proof of service showing U.S. mail service on that same day. Per Code of Civil Procedure section 1005(b) opposition papers were to be filed by May 21, 2026. The papers were five days late.

California Rules of Court, rule 3.1300, subdivision (d) states, "No paper may be rejected for filing on the ground that it was untimely submitted for filing. If the court, in its discretion, refuses to consider a late filed paper, the minutes or order must so indicate." Here, the Court balances the totality of circumstances, including judicial economy to avoid the expenditure of any further judicial resources, the court will look past the procedural violations and consider the motion and opposition on its merits. However, the defendant is hereby admonished to comply with Rule of Court and Code of Civil Procedure. Any future violations may result in the court's refusal to consider untimely filed papers.

B. ATTORNEY'S FEES AND 21-DAY SAFE HARBOR PROVISION

California Code of Civil Procedure section 425.16 provides that: "If the court finds that a special motion to strike is frivolous or is solely intended to cause unnecessary delay, the court shall award costs and reasonable attorney's fees to a plaintiff prevailing on the motion, pursuant to Section 128.5." (Code Civ. Proc. § 425.16(c)(1).)

Code of Civil Procedure Section 128.5 provides that "[a] trial court may order a party, the party's attorney, or both, to pay the reasonable expenses, including attorney's fees, incurred by another party as a result of actions or tactics, made in bad faith, that are frivolous or solely intended to cause unnecessary delay." (Cal. Code of Civ. Proc. §128.5(a).) "Actions or tactics" include, but are not limited to, the making or opposing of motions or the filing and service of a complaint, cross-complaint, answer, or other responsive pleading." (Cal. Code of Civ. Proc. §128.5(b)(1).) "Frivolous" means totally and completely without merit or for the sole purpose of harassing an opposing party." (Cal. Code of Civ. Proc. §128.5(b)(2)). "[A] party seeking sanctions under section[] 128.5 . . . must follow a two-step procedure." (*Transcon Financial, Inc. v. Reid & Hellyer, APC* (2022) 81 Cal.App.5th 547, 550). "If the alleged action or tactic is the making or opposing of a written motion or the filing and service of a complaint, cross-complaint, answer, or other responsive pleading that can be withdrawn or appropriately corrected, a notice of motion shall be served as provided in Section 1010, but shall not be filed with or presented to the court, unless 21 days after service of the motion or any other period as the court may prescribe, the challenged action or tactic is not withdrawn or appropriately corrected." (Cal. Code of Civ. Proc. § 128.5(b)).

Code of Civil Procedure Section 128.7 provides that a court may impose sanctions on a party or attorney that presents a pleading, petition, motion, or other similar papers in the following circumstances:

- (1) the document is presented primarily for an improper purpose, such as to harass or to cause unnecessary delay or needless increase in the cost of litigation;
- (2) the claims, defenses, and other legal contentions therein are not warranted by existing law or by a nonfrivolous argument for the extension, modification, or reversal of existing law or the establishment of new law;
- (3) the allegations and other factual contentions have no evidentiary support;
- (4) the denials of factual contentions are not warranted on the evidence.

Section 128.7 permits the Court to impose monetary sanctions on an attorney or an unrepresented party that violates any one of these requirements. (*Eichenbaum v. Alon* (2003) 106 Cal App 4th 967, 976). In addition, section 128.7 does not require a finding of subjective bad faith; instead it requires only that the Court find that the conduct be objectively unreasonable. (*In re Marriage of Reese & Guy* (1999) 73 Cal. App. 4th 1214, 1221). A court *may* impose sanctions if it concludes a pleading was filed for an improper purpose or was indisputably without merit, either legally or factually. (*Bucur v. Ahmad* (2016) 244 Cal.App.4th 175, 189–190). A claim is factually frivolous if it is “not well grounded in fact” and is legally frivolous if it is “not warranted by existing law or a good faith argument for the extension, modification, or reversal of existing law.” (*Ibid.*). In either case, to obtain sanctions, the moving party must show the party's conduct in asserting the claim was objectively unreasonable. (*Ibid.*). A claim is objectively unreasonable if “any reasonable attorney would agree that [it] is totally and completely without merit.”⁷ (*Ibid.*). However, “section 128.7 sanctions should be ‘made with restraint’ [Citation], and are not mandatory even if a claim is frivolous.” (*Peake v. Underwood* (2014) 227 Cal.App.4th 428. at 448). Additionally, section 128.7(c)(1) requires that a motion for sanctions under 128.7 be made separately from other motions and notice of motion must comply with the safe harbor provision.

“‘[T]he moving party must serve on the offending party a motion for sanctions. Service of the motion on the offending party begins a [21]-day safe harbor period during which the sanctions motion may not be filed with the court. During the safe harbor period, the offending party may withdraw the improper pleading and thereby avoid sanctions. If the pleading is withdrawn, the motion for sanctions may not be filed with the court. If the pleading is not withdrawn during the safe harbor period, the motion for sanctions may then be filed.’ [Citation.]” (*Martorana v. Marlin & Saltzman* (2009) 175 Cal.App.4th 685, 698). “The ‘21 days is not a notice period. . . It defines when the target of a sanctions motion can act without penalty and withdraw’ an objectionable document.” (*Transcon Financial, Inc., supra*, 81 Cal.App.5th at pp.550–551). “[T]he ‘sanctions motion cannot be filed until the 22nd day after service of the motion, i.e., after the 21-day safe harbor period expires.’ [Citation.]” (*Id.* at p.551). “Failure to comply with the safe harbor provisions ‘precludes an award of sanctions.’ [Citation.]” (*Ibid.*).

III. ANALYSIS

Plaintiffs seeks sanctions against Defendant Liu and her former counsel of record, James L. Arrasmith pursuant to Code of Civil Procedure section 128.5 and 128.7. Plaintiff filed the present motion after defendant filed a second special motion to strike the plaintiff's Complaint under Code of Civil Procedure section 425.16 (anti-SLAPP).⁸ Plaintiff counsel Andy Yang attests that on October 20, 2025, sending an email to the defendant's then attorneys Tommy J. Hogan and James L. Arrasmith confirming service of Plaintiff's Motion for Attorney's Fees under the safe-harbor provision, including that the anti-SLAAP filing was untimely as it was filed more than a year after the Complaint was served in violation of Code of Civil Procedure section 425.16(f); successive as the defendant filed a first anti-SLAPP motion, which the Court heard on January 23, 2025 and denied the motion in substantial part⁹; and

⁷ Code of Civil Procedure section 128.7 was enacted by the legislature based on Federal Rules of Civil Procedure, 28 U.S.C. rule 11 as amended in 1993. (*Musaelian v. Adams* (2009) 45 Cal.4th 512, 518, fn. 2). As a result, federal case law construing rule 11 is persuasive authority on the meaning of section 128.7. (*Guillemin v. Stein* (2002) 104 Cal.App.4th 156, 168). Under rule 11, even though an action may not be frivolous when it is filed, it may become so if later-acquired evidence refutes the findings of a pre-filing investigation and the attorney continues to file papers supporting the client's claims. (*Childs v. State Farm Mut. Auto. Ins. Co.* (5th Cir.1994) 29 F.3d 1018, 1025). As a result, an attorney cannot “just cling tenaciously to the investigation he had done at the outset of the litigation and bury his head in the sand.” (*Ibid.*) This requires an attorney to conduct a reasonable inquiry to determine if his or her client's claim was well-grounded in fact and to take into account the adverse party's evidence. (*Ibid.*).

⁸ Defendant's Special Motion to Strike the plaintiff's Complaint pursuant to Code of Civil Procedure section 425.16 (anti-SLAPP) came on for hearing on June 2, 2026. The matter having been submitted, the Court DENIED the motion on the grounds that Defendant Liu has cited no legal authority, factual basis, or good cause for this court to entertain a second special motion to strike directed at plaintiffs' complaint.

⁹ Plaintiffs causes of actions, including libel, trade libel, false light, invasion of privacy, and related torts to proceed. The Complaint has not materially been amended since the January 27, 2025.

improper as the motion is frivolous and attempts to re-litigate issues already decided. (Declaration of Yang, 1-2). Parties met-and-conferred October 31, 2025 and discussed that the plaintiff would pursue the motion for attorney's fees and sanctions unless the defendant withdrew the anti-SLAPP motion within 21 days of service of this motion. (*Id.*, at p.2; Defendant's motion, p. 2). Defendant refused to withdraw its motion. The plaintiff filed this present motion on November 13, 2025. (*Id.*).

Plaintiffs seek \$8,925.00 in sanctions. Plaintiff's counsel Andy Yang attests that his hourly rate for purposes of this motion is \$350.00 and asserts he spent a total of 25.5 hours on tasks, including: reviewing the defendant's successive anti-SLAPP motion and comparing the prior anti-SLAPP ruling in January 2025 to the operative pleadings; conducting legal research on the motion; preparing for the motion; meeting-and-conferring in compliance with safe-harbor provisions; preparing declarations, proof of service, preparing an opposition; reviewing the docket and case history; preparing for the June 2, 2026 special motion to strike; and preparing a supplemental declaration and fee calculation. (Plaintiff's Supplemental Declaration of Yang, p. 3-4).

In addition to the attorney's fees, Plaintiff seeks a 1.5 multiplier in the amount of \$4,462.50 to the lodestar amount of \$8,925.00 on the grounds that he represents the plaintiffs on a contingency basis and absorbed the risks of delayed or no payment. (*Id.*). Plaintiff argues that the defendant relitigated the same anti-SLAPP issues that were previously successful. (*Id.*). Further, the defendant filed a motion to set aside/vacate at \$10,400.00 attorney's fees award that the Honorable Shella Deen ordered on April 17, 2025¹⁰ that was rejected on March 16, 2026. (*Id.*). In total, the plaintiffs seek \$13,387.50 in attorney's fees and sanctions.

Defendant argues that the motion for sanctions is deficient for multiple reasons: plaintiff has failed to prove that the motion was frivolous, improper the instant motion is procedurally flawed as Plaintiff did not comply with the 21 day safe harbor provision under Code of Civil Procedure section 128.5(f). Defendant further argues that the Anti-SLAPP motion was brought in good faith. (Defendant's opposition, p.2-3).

Plaintiff has shown compliance with the 21-day safe harbor provision and showed that there was no new information from the special motion. On June 2, 2026, the defendant's special motion to strike plaintiff's complaint Pursuant to Code of Civil Procedure section 425.16 (anti-SLAPP) was denied. The Court will award attorney's fees based on the procedural history, but upon review of the filing makes the following deductions: 2.5 hours for legal research regarding successive anti-SLAPP motions; 2.2 hours for preparing the sanction motion; 1 hour for preparing proof of service and filing documents; 3.5 hours for drafting an opposition motion; 1 hour for reviewing the docket and procedural history; and 1.5 hours for supplemental declaration. The Plaintiff also sought \$350.00 for 1 hour allocated to "Attend June 2, 2026 anti-SLAPP hearing." The Court denies and deducts this task on the grounds that no parties appeared for the June 2 hearing and the Court adopted its tentative order that was unchallenged. Counsel also seeks \$350.00 for 1 hour of anticipated cost to "prepare for and attend June 4, 2026 fee/sanctions hearing," which the Court will deny.

IV. CONCLUSION

Based on the foregoing, Plaintiff's request for attorney's fees in the amount of \$8,925.00 is DENIED. The Court will award \$4,130.00 in attorney's fees. The requested 1.5 multiplier of \$4,462.50 is DENIED. The attorney's fee award shall be paid within 30 days of service of the formal Order. The Court will prepare the Order.

¹⁰ On April 17, 2025, the Honorable Shella Deen awarded Plaintiffs \$10,400.00 in attorney's fees pursuant to Code of Civil Procedure section 425.16 after granting Plaintiffs' anti-SLAPP motion as to Defendant Liu's malicious prosecution claim.

Calendar Lines # 6
Case Name Aparna Palaparathi vs Padma Kastury et al
Case No. 24CV469921
Petition to Compel Arbitration Before the court is Defendant Genista Biosciences Inc.’s petition to compel arbitration and stay the action pending arbitration. Pursuant to California Rule of Court 3.1308, the court issues its tentative ruling as follows. <u>I. BACKGROUND</u> This action arises from an intra-family dispute regarding a family-owned business, Genista Biosciences Inc. (“Genista”), founded in 2009 by sisters-in-law, Plaintiff Aparna Palaparathi (“Aparna”) and Defendant Padma Katsury (“Padma”). Plaintiffs Aparna Palaparathi and Ravi Palaparathi’s (“Ravi”) (collectively “Plaintiffs”) filed a First Amended Complaint (“FAC”) which includes both direct and derivative claims on behalf of Genista. Plaintiffs’ claims relate in whole or in part to Aparna’s employment with Genista. In May 2025, Aparna transferred half her shares to her husband Ravi, who joins this action as a minority shareholder. (FAC at ¶ 16). According to the FAC, Aparna and Padma agreed that they would take reduced compensation for their employment with the expectation that the money would be used for research and development, to preserve capital, and increase Genista’s value. (FAC at ¶ 17). Aparna and Padma agreed that they would later be compensated with “catch-up payment.” (<i>Ibid.</i>). Aparna alleges she never received “catch-up payment” and that her salary was reduced below the threshold required for exempt employees. (FAC at ¶ 19). Aparna maintains she was not paid overtime, not provided accurate pay stubs, deprived of meal and rest breaks, paid less than minimum wage, and deprived of paid sick leave. (<i>Ibid.</i>). Aparna further alleges Padma has violated the Shareholder Agreement by purporting to add Arun and Kiran to the Board of Directors, attempting to approve and accept the Term Sheet for third-party investment that would dilute the shareholder’s ownership interest, attempting to change Genista’s articles of incorporation and Bylaws, and attempting to convert Genista to a Delaware corporation. (FAC at ¶ 83). Aparna also alleges Defendants have refused to allow her to inspect the books and records of Genista “and have withheld and concealed corporate records, including those pertaining to the Investor transaction[,]” that would be detrimental to her continued employment. (FAC at ¶¶ 89, 46, 48). Defendants Genista, Padma Katsury, Arun Katsury (“Arun”), and Kiran Katsury (“Kiran”) (collectively “Defendants”) move to compel arbitration of all but three causes of action brought by Ravi based on identical Arbitration Agreements separately executed in August 2024. Having reviewed the Agreements and evidence, the Court concludes that the motion should be granted. <u>II. LEGAL STANDARD</u> Defendants maintain the Federal Arbitration Act governs the Arbitration Agreements. The Agreements provide: “Any arbitration proceeding under this Agreement shall proceed under and be governed by the Federal Arbitration Act (“FAA”) because Employee, Worksite Employer, and Rippling PEO are engaged in interstate commerce.” (Declaration of Arun Katsury [“Katsury Decl.”], Exs. A-D). In addition, “[e]mployment contracts, except for those covering workers engaged in transportation, are covered by the FAA.” (<i>EEOC v. Waffle House, Inc.</i> (2002) 534 U.S. 279, 289). Under the FAA, the court’s role is limited to determining “(1) whether a valid agreement to arbitrate exists, and if it does (2) whether the agreement encompasses the dispute at issue.” (<i>Chiron Corp. v. Ortho Diagnostic Systems, Inc.</i> (9th Cir. 2000) 207 F.3d 1126, 1130). To determine “whether a valid contract to arbitrate exists,” courts apply